

1.

CASE #	CASE NAME	HEARING NAME
CVME2505435	LICEA VS GENERAL MOTORS LLC	MOTION FOR ATTORNEY'S FEES

Tentative Ruling: Motion for Attorney's is granted in the reasonable amount of \$ 12,952.50. Costs awarded in the amount of \$969.10. Request for a multiplier is denied based upon complexity of case and amount of litigation involved. The amount was reduced based upon reasonable billing hours and some duplicative work.

2.

CASE #	CASE NAME	HEARING NAME
CVME2506577	QIN VS KOLL	MOTION TO DISMISS

Tentative Ruling: Unopposed motion to dismiss is granted.

3.

CASE #	CASE NAME	HEARING NAME
CVME2513234	HARRIS VS GROUP V SAN BERNARDINO LP	MOTION TO STRIKE COMPLAINT

Tentative Ruling: Motion to Strike is denied. Defendants to answer within 10 days. Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike [a pleading] or any part thereof[.]” (C.C.P. § 435(b)(1).) The Court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, “[s]trike out any irrelevant, false, or improper matter inserted in any pleading.” (C.C.P. § 436(a).) An immaterial or irrelevant allegation is one that “is not essential to the statement of a claim or defense”; “is neither pertinent to nor supported by an otherwise sufficient claim or defense”; or “[a] demand for judgment requesting relief not supported by the allegations of the complaint[.]” (C.C.P. § 431.10(b).) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (C.C.P. § 437(a).)

A motion to strike is the proper vehicle to attack a claim for punitive damages where facts alleged do not rise to the level of fraud, malice or oppression. (*Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) Plaintiffs may recover exemplary or punitive damages where it is proven that “the defendant has been guilty of oppression, fraud or malice.” (Civ. Code § 3294(a).)

As defined in the statute, “malice” is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others,” while “oppression” is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294(c)(1) and (2).) As used in the statute, “despicable conduct” is conduct that is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*American Airlines, Inc. v. Sheppard Mullin Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050.)